

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
OSCAR ANIBAL GUEVARA PEREZ	)	Docket Nos. 2025-150;
License No. 097.0134954	)	2025-151
	)	

STIPULATED VOLUNTARY SURRENDER OF LICENSE ORDER

NOW COMES the State of Vermont, by and through Prosecuting Attorney, Zoe Newman, and Respondent, Oscar Anibal Guevara Perez, by and through his counsel, Kevin Lumpkin, Esq., who hereby stipulate and agree as follows:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (Board) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814; 26 V.S.A. Chapter 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (OPR).

Alleged Facts

2. Oscar Anibal Guevara Perez (Respondent) of South Royalton, Vermont is on the State of Vermont Roster of Non-Licensed, Non-Certified Psychotherapists under license number 097.0134954. This license was first issued on November 12, 2020, and expires on November 30, 2026.
3. On May 10, 2022, Respondent applied for licensure with the State of Vermont as a Licensed Independent Clinical Social Worker. This application remains pending at the time of this filing.
4. At all times relevant, Respondent was employed by an Agency in Windsor County (Agency) to provide psychotherapy.
5. In December 2024, A.K. sought psychotherapy services with the Agency and, after completing the Agency's intake process, A.K. was assigned to Respondent as a psychotherapy client.
6. Thereafter, Respondent and A.K. met for weekly psychotherapy sessions, sometimes in person and sometimes via video conference software.

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7. Respondent and A.K.'s professional relationship was terminated after approximately three months, on or about March 28, 2025.
8. At all times relevant, A.K. was supervised by Vermont Probation and Parole having previously pled guilty to one felony count of Sexual Abuse of a Vulnerable Adult, under 13 VSA 1379(c)(2).
9. At all times relevant, Respondent was aware of A.K.'s criminal record and the sexual nature of the charge and underlying conduct.

Self-Disclosures and Scope of Practice

10. Assistant Director of Adult Mental Health, LICSW L.L., was Respondent's direct supervisor at the Agency.
11. When Respondent began working with A.K., L.L. warned Respondent to be cautious with the scope of treatment due to the conduct underlying A.K.'s criminal conviction.
12. L.L. and Respondent agreed that, based on Respondent's training and experience, Respondent's therapeutic work with A.K. would be limited to stress management, affect management, and regulation skills.
13. Despite L.L.'s understanding of scope, as outlined in paragraphs 11 and 12, Respondent chose to work with A.K. on what Respondent later described as broad issues toward "transformational change."
14. Respondent explained that the work on "transformational change" included a focus on sex positivity and destigmatization of A.K.'s criminal conviction.
15. During the course of their three-month therapeutic relationship, Respondent made a number of self-disclosures pertaining to his sexuality and sex life.
16. None of these self-disclosures were shared first with Respondent's supervisor nor recorded in the session note or anywhere else in A.K.'s medical record.
17. Respondent admitted to making the following self-disclosures:
 - a. Respondent told A.K. that he was gay in response to A.K. offering to introduce Respondent to a woman.
 - b. Respondent told A.K. he knew he was gay due to the feeling he had as a child while watching cartoons and seeing a bulge in a character's pants.
 - c. Respondent told A.K. that he found A.K. seductive.
 - d. Respondent told A.K. that he was feeling "horny."

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- e. Respondent talked to A.K. about his "head count," by which he meant the number of sexual partners he had in his lifetime.
 - f. Respondent alluded to A.K. that he too could have faced criminal charges based on his sex life during his 20s.
 - g. Respondent talked to A.K. about masturbation as stress relief.
 - h. Respondent discussed A.K.'s Conditions of Release, which prohibited him from accessing pornography, as something negative that affected A.K.'s ability to masturbate.
 - i. Respondent discussed with A.K. his own recent sexual encounter.
18. Respondent later stated that the self-disclosures listed in paragraph 17 were made with the intention of showing that Respondent and A.K. were similar, to destigmatize A.K.'s criminal conviction for sexual assault, to lessen sexual shame, and to use "irreverence" as a therapeutic technique all while working towards transformational change.
19. At one point, A.K. expressed concern to Respondent that Respondent was romantically interested in A.K.
20. Respondent later recalled responding to A.K. by asking: "Are you fucking kidding me?"
21. After the fact, Respondent reflected that he did not have the skills to have been working with A.K.

Dual Relationships

22. Respondent provided A.K. with his personal cell phone number.
23. On December 30, 2024, Respondent texted A.K.: "Hey bud, this is [Respondent]. Thanks for the email about changing the spark plugs and ignition coils. I truly appreciate it."
24. A.K. responded by offering to lend Respondent his tools and Respondent informed A.K. of his travel plans for the New Year.
25. A.K. texted: "I'll be here. If you have questions, don't hesitate to reach out to me."
26. Respondent replied: "I will, I might need your tools [tool emoji][.]"
27. Between December 2024 and March 2025, Respondent and A.K. continued a text conversation in which they alternately discussed a range of subjects, some of which included: Respondent's car trouble and concern for mechanical bills, A.K.'s fear of being taken into custody by the Department of Corrections, A.K.'s mental health, A.K.'s legal cases, and Respondent trying Kombucha for the first time.

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28. This text conversation between Respondent and A.K. also included several requests for phone calls by both Respondent and A.K. outside of their therapeutic sessions.
29. On or about February 7, 2025, after a virtual therapy session, Respondent and A.K. agreed to meet in person at a coffee shop.
30. According to Respondent, this was to provide A.K. with community support outside of their therapy sessions.
31. According to Respondent, when they arrived at the coffee shop, it did not feel private enough and Respondent was uncomfortable.
32. Respondent suggested that they instead visit the birthplace of Joseph Smith, the founder of the Church of Jesus Christ of Latter-day Saints, and Respondent drove A.K. there in Respondent's own car.
33. Respondent later explained that he brought A.K. to Joseph Smith's birthplace to help A.K. with stress management.
34. Respondent stated he had previously brought other clients to Joseph Smith's birthplace as part of their therapeutic work as he found it to be a "magical place."
35. Respondent also explained that this was not the first time he had transported a client in his personal vehicle and that he had previously given a ride to a different patient so that Respondent and the unnamed patient could go for a hike together.
36. Per Respondent and A.K.'s text messages, they agreed to meet again, this time for coffee and to kick around a soccer ball, on February 21, 2025.

Nonlicensed and Noncertified Psychotherapist Disclosure of Information

37. During one of his sessions, A.K. asked Respondent for Respondent's Disclosure of Information and Respondent did not provide it.
38. Respondent later admitted that, as a practice, he does not provide clients with the required Disclosure of Information, instead informing them to search for his name using a web browser or look him up on the OPR website.

Violation One: 26 V.S.A. § 4093(a)(7) Entering into an additional relationship with a client, supervisee, research participant, or student that might impair the psychotherapist's objectivity or otherwise interfere with his or her professional obligations.

39. Paragraphs 2 through 38 above are incorporated herein.
40. As a Rostered Psychotherapist, Respondent is prohibited from entering into an additional relationship with a client that might impair his objectivity or otherwise interfere with his professional obligations.

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41. Paragraphs 2 through 38 demonstrate that Respondent entered into an additional relationship with a client that might have impaired Respondent's objectivity or otherwise interfered with his professional obligations when Respondent formed an additional relationship with client A.K. which involved texting, seeking mechanical help, and socializing together in the community, moreover, Respondent formed additional relationships with other unnamed clients when he took those clients to Joseph Smith's birth place and met them in the community to hike together, all of which impaired Respondent's objectivity and otherwise interfered with his professional obligations.

42. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. § 4093(a)(7).

Violation Two: 26 V.S.A. § 4093(a)(8) Practicing outside or beyond a psychotherapist's area of training, experience, or competence without appropriate supervision.

43. Paragraphs 2 through 38 above are incorporated herein.

44. As a Rostered Psychotherapist, Respondent is prohibited from practicing outside or beyond his area of training, experience, or competence without appropriate supervision.

45. Paragraphs 2 through 38 demonstrate that Respondent practiced outside or beyond his area of training, experience or competence without appropriate supervision when Respondent ignored his supervisor's instruction to focus on specific areas within his training and experience with client A.K., namely stress management, affect management, and regulation skills and, instead, focused on transformational change, sex positivity and destigmatization of A.K.'s criminal conviction, the latter being beyond his training, experience, and competence.

46. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. § 4093(a)(8).

Violation Three: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

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47. Paragraphs 2 through 38 above are incorporated herein.

48. As a Rostered Psychotherapist, Respondent is required to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

49. Paragraphs 2 through 38 demonstrate that Respondent failed to exercise independent judgement in the performance of licensed activities when that judgement is necessary to

avoid action repugnant to the obligations of the profession when Respondent repeatedly shared detailed information about his own sexual preferences, sexual activities, and told client A.K. that he was horny and that A.K. was seductive.

50. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Violation Four: 3 V.S.A. §129a(a)(3) Failing to comply with provisions of federal or State statutes or rules governing the practice of the profession.

51. Paragraphs 2 through 38 above are incorporated herein.
52. As a Rostered Psychotherapist, Respondent is required to comply with provisions of federal or State statutes or rules governing the practice of the profession.
53. Nonlicensed and Noncertified Psychotherapists are required, under 26 V.S.A. § 4090, to provide a Disclosure of Information to each client, which comports with the rules and regulations governing the profession and includes: 1. "psychotherapist's professional qualifications and experience," 2. "those actions that constitute unprofessional conduct," 3. "the method for filing a complaint or making a consumer inquiry."
54. Under the Administrative Rules of the Board of Allied Mental Health Practitioners, Rule 2.4, by the third session with a new client, the Rostered psychotherapist must have the client sign a document stating that the Disclosure of Information had been provided to the client by the psychotherapist in one of the ways provided for under the rule. If the client refuses to sign said document, then the psychotherapist is required to write and sign a statement explaining the omission. The psychotherapist must retain a copy of the signed document.
55. Paragraphs 2 through 38 demonstrate that Respondent failed to comply with provisions of State statutes and rules governing the practice of the profession when Respondent did not provide any of his clients with his Disclosure of Information as required by 26 V.S.A. § 4090 and the Administrative Rules of the Board of Allied Mental Health Practitioners, Rule 2.4. and, instead, told his clients to search his name in a web browser or look him up through the OPR website, neither of which would actually provide his clients with the required Disclosure of Information.
56. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(3).

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Understandings

57. This Stipulation is neither an admission of liability by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Stipulation pursuant to these Understandings and the Order below. Respondent does not

dispute that the State may be able to prove these charges by a preponderance of the evidence if this matter proceeds to a merits hearing. Respondent desires to voluntarily surrender his license as a Non-Licensed Non-Certified Psychotherapist.

58. Respondent understands that the Board must review and accept the terms of the Stipulated Voluntary Surrender of License. If the Board rejects any portion, the entire Stipulation and Consent Order Stipulated Voluntary Surrender of License shall be null and void.
59. Respondent specifically waives any claim that any disclosures made to the Board during review of this agreement have prejudiced Respondent's right to a fair and impartial hearing if this agreement is not accepted and proceeds to a hearing on the merits before the same Board.
60. Respondent has read and reviewed this entire document and agrees it contains the entire agreement between the parties.
61. Respondent is not under the influence of any drugs or alcohol at the time of signing this Stipulated Voluntary Surrender of License.
62. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulated Voluntary Surrender of License.
63. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulated Voluntary Surrender of License.
64. Respondent understands that he is responsible for all compliance costs associated with this Stipulated Voluntary Surrender of License.
65. Respondent agrees the Board may enter the Acceptance of Voluntary Surrender and Order set forth below.

ACCEPTANCE OF VOLUNTARY SURRENDER AND ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health hereby **ACCEPTS** Respondent's **VOLUNTARY SURRENDER** of his license as a Rostered Non-License Non-Certified Psychotherapist.
- B. Any future application for licensure shall be subject to the licensing requirements of that particular profession. If a future application for licensure in the State of Vermont is approved, that license shall be **CONDITIONED** pursuant to whatever terms are found reasonable at the time of Respondent's application for licensure, taking into account the facts above.

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- C. This Stipulated Voluntary Surrender of License and Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- D. This Stipulated Voluntary Surrender of License and Order applies to all licenses this Board issues to Respondent, including future licenses, as provided in 3 V.S.A. § 129(I).
- E. This Stipulated Voluntary Surrender of License and Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 11/7/25

By: *Zoe Newman*
Zoe Newman
Prosecuting Attorney

Dated: 11/7/2025

By: *[Signature]*
RESPONDENT
Oscar Anibal Guevara Perez

APPROVED AS TO FORM:

Dated: 11/7/2025

By: *[Signature]*
COUNSEL FOR RESPONDENT
Kevin Lumpkin, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH

Dated: 11/20/2025

By: *Tammy Austin*
DocuSigned by:
D2A0CB8015D04F1...
Chairperson

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Date of Entry: 11/20/25

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BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
OSCAR ANIBAL GUEVARA PEREZ) **Docket Nos. 2025-150 ;**
License No. 097.0134954) **2025-151**
)

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and hereby makes the following charges against Respondent Oscar Anibal Guevara Perez:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (Board) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814; 26 V.S.A. Chapter 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (OPR).

Statement of Facts

2. Oscar Anibal Guevara Perez (Respondent) of South Royalton, Vermont is on the State of Vermont Roster of Non-Licensed, Non-Certified Psychotherapists under license number 097.0134954. This license was first issued on November 12, 2020, and expires on November 30, 2026.
3. On May 10, 2022, Respondent applied for licensure with the State of Vermont as a Licensed Independent Clinical Social Worker. This application remains pending at the time of this filing.
4. At all times relevant, Respondent was employed by an Agency in Windsor County (Agency) to provide psychotherapy.
5. In December 2024, A.K. sought psychotherapy services with the Agency and, after completing the Agency's intake process, A.K. was assigned to Respondent as a psychotherapy client.
6. Thereafter, Respondent and A.K. met for weekly psychotherapy sessions, sometimes in person and sometimes via video conference software.
7. Respondent and A.K.'s professional relationship was terminated after approximately three months, on or about March 28, 2025.

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8. At all times relevant, A.K. was supervised by Vermont Probation and Parole having previously pled guilty to one felony count of Sexual Abuse of a Vulnerable Adult, under 13 VSA 1379(c)(2).
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17. Respondent admitted to making the following self-disclosures:
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- f. Respondent alluded to A.K. that he too could have faced criminal charges based on his sex life during his 20s.
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Dual Relationships

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29. On or about February 7, 2025, after a virtual therapy session, Respondent and A.K. agreed to meet in person at a coffee shop.
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31. According to Respondent, when they arrived at the coffee shop, it did not feel private enough and Respondent was uncomfortable.
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Nonlicensed and Noncertified Psychotherapist Disclosure of Information

37. During one of his sessions, A.K. asked Respondent for Respondent's Disclosure of Information and Respondent did not provide it.
38. Respondent later admitted that, as a practice, he does not provide clients with the required Disclosure of Information, instead informing them to search for his name using a web browser or look him up on the OPR website.

Violation One: 26 V.S.A. § 4093(a)(7) Entering into an additional relationship with a client, supervisee, research participant, or student that might impair the psychotherapist's objectivity or otherwise interfere with his or her professional obligations.

39. The State re-alleges and incorporates Paragraphs 2 through 38 above.
40. As a Rostered Psychotherapist, Respondent is prohibited from entering into an additional relationship with a client that might impair his objectivity or otherwise interfere with his professional obligations.

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41. Paragraphs 2 through 38 demonstrate that Respondent entered into an additional relationship with a client that might have impaired Respondent's objectivity or otherwise interfered with his professional obligations when Respondent formed an additional relationship with client A.K. which involved texting, seeking mechanical help, and socializing together in the community, moreover, Respondent formed additional relationships with other unnamed clients when he took those clients to Joseph Smith's birth place and met them in the community to hike together, all of which impaired Respondent's objectivity and otherwise interfered with his professional obligations.
42. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. § 4093(a)(7).

Violation Two: 26 V.S.A. § 4093(a)(8) Practicing outside or beyond a psychotherapist's area of training, experience, or competence without appropriate supervision.

43. The State re-alleges and incorporates Paragraphs 2 through 38 above.
44. As a Rostered Psychotherapist, Respondent is prohibited from practicing outside or beyond his area of training, experience, or competence without appropriate supervision.
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46. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. § 4093(a)(8).

Violation Three: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

47. The State re-alleges and incorporates Paragraphs 2 through 38 above.
48. As a Rostered Psychotherapist, Respondent is required to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

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49. Paragraphs 2 through 38 demonstrate that Respondent failed to exercise independent judgement in the performance of licensed activities when that judgement is necessary to avoid action repugnant to the obligations of the profession when Respondent repeatedly shared detailed information about his own sexual preferences, sexual activities, and told client A.K. that he was horny and that A.K. was seductive.
50. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Violation Four: 3 V.S.A. §129a(a)(3) Failing to comply with provisions of federal or State statutes or rules governing the practice of the profession.

51. The State re-alleges and incorporates Paragraphs 2 through 38 above.
52. As a Rostered Psychotherapist, Respondent is required to comply with provisions of federal or State statutes or rules governing the practice of the profession.
53. Nonlicensed and Noncertified Psychotherapists are required, under 26 V.S.A. § 4090, to provide a Disclosure of Information to each client, which comports with the rules and regulations governing the profession and includes: 1. "psychotherapist's professional qualifications and experience," 2. "those actions that constitute unprofessional conduct," 3. "the method for filing a complaint or making a consumer inquiry."
54. Under the Administrative Rules of the Board of Allied Mental Health Practitioners, Rule 2.4, by the third session with a new client, the Rostered psychotherapist must have the client sign a document stating that the Disclosure of Information had been provided to the client by the psychotherapist in one of the ways provided for under the rule. If the client refuses to sign said document, then the psychotherapist is required to write and sign a statement explaining the omission. The psychotherapist must retain a copy of the signed document.
55. Paragraphs 2 through 38 demonstrate that Respondent failed to comply with provisions of State statutes and rules governing the practice of the profession when Respondent did not provide any of his clients with his Disclosure of Information as required by 26 V.S.A. § 4090 and the Administrative Rules of the Board of Allied Mental Health Practitioners, Rule 2.4. and, instead, told his clients to search his name in a web browser or look him up through the OPR website, neither of which would actually provide his clients with the required Disclosure of Information.

56. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(3).

Relief Requested

WHEREFORE, the State of Vermont respectfully requests that the Board revoke,

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suspend, condition, or otherwise discipline Respondent's license as a Rostered Non-Licensed, Non-Certified Psychotherapist.

DATED this 22nd day of September 2025.

STATE OF VERMONT
SECRETARY OF STATE

By:

Zoe Newman
Zoe Newman
Prosecuting Attorney
Zoe.newman@vermont.gov

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